



POLICE DEPARTMENT

August 17, 2020

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2019-21104
Police Office Luis Munoz	:	
Tax Registry No. 919460	:	
Housing PSA 2	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Stuart London, Esq.
Worth, Longworth & London, LLP.
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Luis Munoz, while assigned to the Fleet Services Division, on or about September 2, 2019, while on duty, was absent from his assignment and an overtime period without permission or police necessity for approximately ten (10) hours and fifty-six (56) minutes.
P.G. 203-05, Page 1, Paragraphs 1 & 2 PERFORMANCE ON DUTY - GENERAL
GENERAL REGULATIONS
2. Said Police Officer Luis Munoz, while assigned to the Fleet Services Division, on or about and between September 2, 2019 and September 9, 2019, wrongfully failed and neglected to make required entries and made a false entry in his Activity Log.
P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS
P.G. 203-05, Page 1, Paragraph 4 PERFORMANCE ON DUTY - GENERAL
3. Said Police Officer Luis Munoz, while assigned to the Fleet Services Division, on or about and between September 2, 2019 and September 9, 2019, wrongfully made inaccurate entries in Department records, to wit: overtime slip or CityTime System database, by improperly submitting an overtime slip, which falsely stated that he had worked a time period that he actually had not worked.
P.G. 203-05, Page 1, Paragraph 4 PERFORMANCE ON DUTY - GENERAL
P.G. 205-17 OVERTIME
PERSONNEL MATTERS
4. Said Police Officer Luis Munoz, while assigned to the Fleet Services Division, on or about October 2, 2019, wrongfully impeded a Department investigation by making false, inaccurate, or misleading statements regarding his actions on September 2, 2019.
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT - PROHIBITED
CONDUCT
GENERAL REGULATIONS
5. Said Police Officer Luis Munoz, while assigned to the Fleet Services Division, on or about October 2, 2019, during an official Department interview conducted pursuant to the provisions of Patrol Guide Section 203-08, wrongfully made false statements regarding his actions on September 2, 2019.
P.G. 203-08, Page 1, Paragraph 1 MAKING FALSE STATEMENTS
GENERAL REGULATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 14, 2020.

Respondent, through his counsel, entered a plea of Guilty to Counts 1-3, Guilty-in-part to Count 5, and Not Guilty to Count 4. The Department called Sergeant Daniel Pavelchak and Captain Chungyoon Huh as witnesses. Respondent testified on his own behalf. A stenographic transcript

of the trial record has been prepared and is available for the Police Commissioner's review.

Having reviewed all of the evidence in this matter, I find as follows:

Count 1 (absent from assignment): Pleaded Guilty

Count 2 (activity log): Pleaded Guilty

Count 3 (overtime slip): Pleaded Guilty

Count 4 (impeded investigation): Not Guilty

Count 5 (false statements): Guilty-in-part

Recommended penalty: forfeiture of thirty (30) days previously served on suspension, thirty (30) vacation days, and one-year dismissal probation.

ANALYSIS

In August of 2019, Respondent had a telephone conversation with an old colleague of his, retired Captain Dan Conway; the two men had worked together at the Fleet Services Division for many years, and continued to see each other on a regular basis after the Captain's retirement in 2018. During the phone call, Conway asked Respondent whether he was scheduled to work the West Indian Day parade on September 2, and Respondent answered in the affirmative. Conway suggested that Respondent speak with Conway's wife, Captain Chungyoon Huh, who also was working the detail that day, so that she could add Respondent to her roster as her driver. Captain Huh later called Respondent, and they made preliminary arrangements for Respondent to work with Captain Huh at the parade.

On August 30, 2019, Captain Huh and Respondent exchanged text messages regarding Respondent's zone assignment for the parade, and the Captain asked Respondent to pick her up at 0600 hours. However, on the morning of the parade, Captain Huh realized that she had made

a mistake and actually needed to be at the parade by 0600 hours; she and Respondent exchanged texts (Resp. Ex. B) and agreed to just meet at the parade site, which they did.

It is undisputed that at some point that morning, Respondent left the parade detail and returned home without completing his tour. Nevertheless, he subsequently submitted an Overtime Report (Dept. Ex. 3) in which he indicated that he had worked until 2213 hours, which included 8 hours and 23 minutes of overtime for which he was paid. Respondent also made an entry in his activity log (Dept. Ex. 4) stating that his end of tour was 2213. Respondent has acknowledged that these entries were false. He also has admitted that during his Department interview on October 2, 2019, a portion of his initial narrative was untrue: he falsely claimed to have worked until 2213, and that it was his domestic partner who was driving his personal vehicle elsewhere in the city that morning. Later in the same interview, Respondent acknowledged that these statements were not true, and he went on to explain that he left the parade after receiving authorization to go home from Captain Huh. At issue is whether that second explanation also was false. I find that it was not.

Sergeant Daniel Pavelchak of the Support Services Bureau Investigations Unit testified that on October 2, 2019, he conducted an official Department interview of Respondent in connection with the events of September 2. An audio copy of that interview, along with the accompanying transcript, were introduced into evidence (Dept. Ex. 1 and 1A, respectively).

In that interview, Respondent initially stated that he did work the parade, ending his tour at 2213 hours. He denied going to breakfast with the Captain. Respondent claimed he spent the entire tour just looking after Captain Huh's personal vehicle, never leaving the location. When confronted with evidence from a license plate reader which showed that his vehicle was elsewhere at about 1117 hours, Respondent claimed that his domestic partner had come to the parade area to retrieve the car, and it was his partner who was driving it when it was captured by

the plate reader; his partner then picked him up at the end of the tour. Soon after Respondent provided that answer, his counsel requested a recess. (Dept. 1A at 9, 24-26, 30-32, 35-36, 40-42, 47)

When the interview resumed, Respondent sought to clarify a portion of his previous statement. He explained that on the morning of the parade, he informed Captain Huh that he was not feeling well, and she told Respondent that she did not really need him and he should go home. She said that she would call him later with the dismissal time, and Respondent headed home at about 1030 hours. He admitted that he was the one driving his vehicle when it was detected by the license plate reader. When asked why he had initially provided a false account of what transpired, Respondent explained that the Captain had shown him kindness that day, and he did not want to get her in trouble. At that point, another recess was taken, and when the interview resumed, Respondent was informed that he was suspended. (Dept. 1A at 47-50)

Sergeant Pavelchak also testified that during the course of Respondent's interview, the sergeant took a recess to call Captain Huh, so he could attempt to verify Respondent's amended description of events. On a subsequent date, the sergeant conducted a more thorough official Department interview with Captain Huh. (Tr. 53) Sergeant Pavelchak also acknowledged that he looked into about five or six other dates where Respondent had been assigned to details similar to the parade, and found no indication of any irregularities. (Tr. 38-39)

Captain Chungyoon Huh of the Candidate Assessment Division testified that she never met Respondent before September 2. She confirmed that her husband, who had worked in Fleet Services for approximately 13 years, had asked her to take Respondent on her roster for the parade as her driver, which she agreed to do. It turned out that the Captain was assigned to Zone 7, an area of about 1 ½ blocks, which did not require driving. When they met at the location, Captain Huh told Respondent, who had initially been assigned to Zone 9, to get on her roster and

stand by, and she would call him if she needed him; the Captain did not, however, call the Zone 9 commander to let them know that Respondent was with her. Before the parade started, Captain Huh, Respondent, and others went to a nearby restaurant for breakfast, then returned to their posts. The Captain stated that she did not see Respondent again after that. She did, however, call Respondent at about 1130 hours to check on how he was doing, since it was raining heavily and was very hot. (Tr. 56-58, 62-65, 69, 71, 74-76)

At the end of the tour, Captain Huh's husband called to ask her how things had gone with Respondent. The Captain realized she had forgotten about him, and so when she hung up with her husband she called Respondent, because she is "a nice person." Captain Huh claimed that she told Respondent that she was sorry it didn't work out for him to actually drive her, and that maybe he could be her driver the next time they had a detail. Respondent thanked her and said that he would call her husband the next day, and they hung up. According to Captain Huh, she then called Respondent back, and told him that he should wait a week to call her husband because he was upstate and his cell phone was not working. Captain Huh testified that she never told Respondent he could leave the parade and go home, and she did not call him with the dismissal time at the end of the tour; there were more than 100 officers in the area, and she merely lost track of Respondent. (Tr. 65-70, 79-81)

Respondent testified that he began feeling sick the day before the parade; he had a headache and was vomiting. On the morning of the parade, he first went to Fleet Services to get his equipment. Respondent selected a Department vehicle, but a sergeant at the command who needed a car took the one that Respondent had chosen. Respondent and the sergeant argued, and Respondent ended up driving his personal vehicle to the parade. (Tr. 85, 89-90, 112-14)

Upon arrival. Respondent met Captain Huh for the first time. She told Respondent to stand by, and not to go on another roster. There were two other officers also standing by: a

female officer who was friends with Captain Huh, and a sergeant. Respondent then went to breakfast with Captain Huh, along with the female officer and sergeant. At the diner, Respondent talked about his difficult experience with the sergeant at Fleet Services that morning. He also discussed how he was not feeling well. Respondent testified that when they arrived back at the parade location after breakfast, Captain Huh asked to speak privately with him; she told Respondent that she was not going to need him that day, and that he should go straight home. Captain Huh also stated that she would contact him at the end of tour with the dismissal time. Respondent left the parade and drove home sometime between 1030-1100 hours. (Tr. 90-93, 105, 115)

According to Respondent, it was raining hard and Captain Huh called him to ask if he made it home okay. Around 2200 hours that evening, Captain Huh called Respondent and told him that the end of tour time was 2013 hours. The Captain then called Respondent right back and told him that she had misspoke, and the correct dismissal time was 2213. Respondent thanked the Captain and told her it was nice meeting her. Phone records (Dept. Ex. 2) confirm that there were two calls placed from Captain Huh to Respondent around that time: the first call at 21:55:56 lasted for 19 seconds, and the second call, at 22:56:34, was 51 seconds in duration. (Tr. 93-95)

Respondent openly acknowledged that he should have acted differently on the day of the parade. Even though he was having a rough morning, he should have declined the Captain's suggestion, and gone sick immediately from the site. He admitted that he was wrong to submit the false overtime slip and make the inaccurate entry in his activity log. Respondent also admitted that he initially was not honest at his Department interview, explaining that he did not want to get Captain Huh in trouble for giving him permission to go home. Also, before the interview he spoke with the Captain's husband, who encouraged Respondent to tell the

investigators that he was with the Captain all day, and Captain Huh would back him up on his account. However, during the course of the interview Respondent realized it would be better to be forthcoming with the truth, and he corrected his statement to reflect what really had transpired. Respondent testified that he was not "trying to push blame on the Captain," and stated, "I'm taking responsibility for what happened." (Tr. 96-99, 100-01, 106-12)

Respondent has pleaded guilty to Specifications 1, 2, and 3: he admitted that he was absent from his assignment, made a false entry about it in his activity log, and submitted a false overtime slip for time he did not actually work.

Specification 5 charges Respondent with making false statements during his Department interview on October 2, 2019. There are essentially three sets of statements included within this count: first, his initial narrative where Respondent claimed to have worked the parade until 2213 hours; second, his claim that his personal vehicle was being driven by his domestic partner, which was Respondent's initial response after being confronted with the results of the license plate reader; and third, the concluding part of the interview where Respondent admitted that he, and not his domestic partner, was driving his personal vehicle, and that he left the parade that morning and drove home, which he did only after receiving permission to do so from Captain Huh. At trial, Respondent confirmed that his initial claim that he worked until 2213 hours was untrue, as was his statement that his domestic partner was the person driving his car. However, Respondent maintained that he was being truthful near the end of the interview, when he explained how Captain Huh told him he could go home. The Department Advocate countered that this, too, was a false statement, and that this false assertion by Respondent impeded the Department's investigation into the matter (Specification 4).

After closely watching and listening to the witnesses as they testified at trial, and carefully evaluating the evidence as a whole, I credit Respondent's explanation that he only left

the parade after Captain Huh told him he should go home. Respondent's account of how Captain Huh called him with the end of tour dismissal time, and then called him back to provide the correct time, was logical, and the phone records corroborate that two calls were, in fact, made. Respondent's trial testimony was consistent with the end of his Department interview, where he described how he initially gave a false narrative about the incident because he did not want to implicate the Captain, who was being kind to him on the day of the parade.

This tribunal is mindful that Respondent, who has a strong interest in the outcome of this matter, made multiple false statements at the start of his Department interview. He only retracted those statements after being confronted with evidence to the contrary. Nevertheless, in his trial testimony Respondent came across as genuine in his description of events, candid in acknowledging the mistakes he made, and his account was plausible. Captain Huh, in contrast, appeared hesitant at times in describing her interactions with Respondent on the day of the parade. Her claim that she initially called Respondent at the end of the tour because she is "a nice person" sounded forced, and her explanation for the follow-up call, that she just wanted to tell him to wait a week to call her husband because of phone issues, felt contrived.

I conclude, therefore, that the credible evidence has failed to establish that Respondent was being untruthful at the end of his Department interview, when he explained how Captain Huh gave him permission to go home. To the extent that Specification 5 deals with those statements, I find Respondent not guilty.

However, since Respondent retracted his initial false statements only after being confronted with evidence to the contrary, he also is guilty-in-part on Specification 5, based on those initial false statements. This was not a situation where Respondent retracted his false statements *before* he had reason to know that the investigators had evidence of their falsity. Rather, Respondent corrected his story only after being confronted with evidence from the

license plate reader. Indeed, even after having been made aware of the license plate reader, Respondent at first provided another false statement, claiming that his domestic partner was driving the car, before later correcting that falsehood too. As such, Respondent is accountable for initially stating that he worked the entire parade, and that his personal vehicle was being driven by his domestic partner. For these false statements, I find Respondent guilty-in-part of Specification 5.

The credible evidence has failed, however, to establish that Respondent impeded an investigation, as alleged in Specification 4. The position of the Department Advocate is that Respondent falsely claimed that he had permission from Captain Huh to leave the parade detail, and that this false statement caused the Department to expend additional resources in interviewing the Captain. However, since I have found Respondent's statement in that regard to be truthful, there was no impeding on his part. Accordingly, I find Respondent not guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on April 15, 1997. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. In 2015, Respondent forfeited 25 vacation days and agreed to counseling after pleading guilty to an off-duty physical altercation.

Respondent has admitted his guilt on the first three specifications, for being absent from his assignment, making a false entry in his activity log, and submitting a false overtime slip. He also has admitted that portions of the narrative he provided at his Department interview was

false, and so he has been found guilty-in-part on Specification 5. However, he has been found not guilty of the remaining portion of Specification 5, which deals with his statements about how Captain Huh gave him permission to go home. He also has been found not guilty of impeding a Department investigation.

The false narrative that Respondent provided at the outset of his Department interview is particularly troubling, where he insisted that he had worked the entire parade. Later in the interview, Respondent falsely claimed that his vehicle was being driven by his domestic partner, a statement he made even after being confronted with evidence from the license plate reader; I find this additional false statement to be an aggravating factor in assessing Respondent's misconduct.

The Department Advocate asks that Respondent be dismissed from the Department. However, that recommendation does not sufficiently take into account the corrective action Respondent took during his Department interview. Before the interview was completed, Respondent acknowledged that he did, in fact, leave the parade early, and that his earlier statement, including the portion where he claimed someone else was driving his personal vehicle, was false. To be sure, Respondent corrected his statement only after being confronted with evidence to the contrary, namely the results of the license plate reader. Even so, Respondent, who has been with the Department for 23 years, deserves some consideration for acknowledging the truth to the investigators before the interview was completed, and I find his corrective action to be a mitigating factor in his favor.

Additionally, Respondent, on the witness stand, demonstrated genuine remorse for his actions in this matter. He fully acknowledged the mistakes he made, and took responsibility for them, without making excuses. I credit his explanation that his initial false statements were

motivated, in part, by a desire to keep Captain Huh out of trouble, even though there also was a self-serving component to his false narrative.

Further, this was not a scenario where Respondent fabricated charges against innocent members of the public, which was the situation in the case cited by the Department Advocate, *Disciplinary Case No. 2016-15291* (Oct. 19, 2016), where an officer initially made false statements concerning multiple summonses he had issued to motorists for infractions he did not, in fact, observe. Here, the underlying incident, leaving the parade duty early and submitting a false overtime report, was not a presumptive termination act, which is an additional mitigating factor.

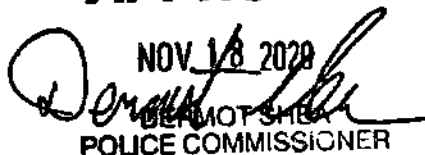
Nevertheless, a considerable forfeiture of days, as well as a period of monitoring, is warranted here. Taking into account the totality of the facts and circumstances in this matter, I recommend that Respondent forfeit thirty (30) days previously served on suspension, that he forfeit an additional thirty (30) vacation days, and that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED



NOV 18 2020
DERMOT SHEA
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LUIS MUNOZ
TAX REGISTRY NO. 919460
DISCIPLINARY CASE NO. 2019-21104

Respondent was appointed to the Department on April 15, 1997. On his last three annual performance evaluations, he twice received 4.0 overall ratings of "Highly Competent" in 2016 and 2017, and once received a 4.5 rating of "Extremely Competent/Highly Competent" in 2015.

In 2015, Respondent forfeited 25 vacation days and agreed to complete a Department counseling program after pleading Guilty to being involved in an off-duty physical altercation, attempting to prevent an individual from dialing 911 at the scene of that incident, and failing to remain at the scene. In connection with that matter, Respondent was placed on Level 2 Discipline Monitoring from March 17, 2015 to September 17, 2016

Respondent was again placed on Level 2 Discipline Monitoring on November 25, 2019 in connection with the instant matter. Monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials